

SENATE No. 2284

The Commonwealth of Massachusetts

PRESENTED BY:

Cindy F. Friedman

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the failure to remove existing utility poles.

PETITION OF:

NAME:

Cindy F. Friedman

DISTRICT/ADDRESS:

Fourth Middlesex

SENATE No. 2284

By Ms. Friedman, a petition (accompanied by bill, Senate, No. 2284) of Cindy F. Friedman for legislation relative to the failure to remove existing utility poles. Telecommunications, Utilities and Energy.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 2128 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the failure to remove existing utility poles.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 164 of the General Laws is hereby amended by inserting after section 34B the
2 following section:-

3 Section 34C. A distribution company or a telephone company engaging in the removal of
4 an existing pole and the installation of a new pole in place thereof that does not complete the
5 transfer of wires, all repairs, and the removal of the existing pole from the site within 90 days
6 from the date of installation of the new pole shall pay a fine of \$200 to the municipality where
7 the existing pole is located for every day after 90 days from the date of installation of the new
8 pole; provided, however, that for any approved commercial or industrial construction project, the
9 completion of which is expected to take longer than one year, said company shall pay a fine of
10 \$200 to the municipality where the existing pole is located for every day after 6 months from the

- 11 date of installation of the new pole that the transfer of wires, all repairs, and the removal of the
- 12 existing pole from the site are not completed.